

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Acampora	Team: Squad #04	CCRB Case #: 201411652	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Friday, 10/31/2014 10:15 PM	Location of Incident: Beach 37th Street and Beach Channel Drive	18 Mo. SOL 4/30/2016	Precinct: 101
Date/Time CV Reported Sat, 11/01/2014 1:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/17/2014 9:20 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Zappia	04152	949824	101 PCT
2. POM Joseph Foss	30244	950434	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Foss	Abuse: PO Joseph Foss drew his gun.	A . Exonerated
B . POM Matthew Zappia	Abuse: PO Matthew Zappia threatened § 87(2)(b) with the use of force.	B . Exonerated
C . POM Matthew Zappia	Discourtesy: PO Matthew Zappia spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Matthew Zappia	Off. Language: PO Matthew Zappia made remarks to § 87(2)(b) based upon his perceived sexual orientation.	D . Unsubstantiated

Case Summary

On October 31, 2014, at approximately 10:15 p.m., § 87(2)(b) jaywalked across the intersection of Beach 37th Street and Beach Channel Drive in Queens with his hands in his pockets. PO Matthew Zappia and PO Joseph Foss pulled up beside § 87(2)(b) in their vehicle and exited. The officers asked § 87(2)(b) to stop and remove his hands from his pockets multiple times, but he refused. PO Foss drew his firearm, but did not point it at § 87(2)(b) (Allegation A). The officers then put § 87(2)(b) up against a fence and frisked and searched him. PO Zappia allegedly told § 87(2)(b) that he was going to throw him on the ground and called him a, “piece of shit,” and a, “faggot,” (Allegations B, C, and D). § 87(2)(b) was taken into custody and removed to the 101st Precinct stationhouse. He was ultimately released with a § 87(2)(b) summons (encl. 13A).

Mediation, Civil and Criminal Histories

- On January 2, 2015, a FOIL request for a notice of claim was submitted, and is pending receipt (encl. 21A-21B). § 87(2)(b) rejected mediation. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) (encl. 4A).
- PO Zappia has been a member of the NYPD for four years, has had five previous CCRB allegations involving two cases with no substantiated allegations. § 87(2)(g)
- PO Foss has been a member of the NYPD for three years, has had four previous CCRB allegations involving one case with no substantiated allegations. § 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A—Abuse of Authority: PO Joseph Foss drew his gun.

It is undisputed that § 87(2)(b) jaywalked with his hands in his pockets, and then refused to comply with multiple requests from the officers to stop walking and take his hands out of his pockets. It is also undisputed that PO Foss then drew his firearm, while continuing to tell § 87(2)(b) to stop and take his hands out of his pockets.

Police Department v. Gliner (encl. 1A-1S) notes that an officer has broad discretion to draw and/or point his firearm so long as he has a reasonable fear for his own or another’s personal safety.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as *exonerated*.

Allegation B—Abuse of Authority: PO Matthew Zappia threatened § 87(2)(b) with the use of force.

It is undisputed that PO Zappia told § 87(2)(b) that he would put him on the ground if he continued to be noncompliant.

§ 87(2)(b) stated that he resisted the officers during their lawful stop, initially refusing to stop and take his hands out of his pockets, and then verbally protesting the arrest (encl. 9A-9B). Additionally, PO Foss stated that § 87(2)(b) repeatedly pushed his body against the officers to resist them (encl. 11A-11C). PO Zappia did not remember if § 87(2)(b) physically resisted the officers (encl. 11A-11C). § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as *exonerated*.

Allegation C—Discourtesy: PO Matthew Zappia spoke discourteously to § 87(2)(b)

Allegation D—Offensive Language: PO Matthew Zappia made remarks to § 87(2)(b) based upon his perceived sexual orientation.

§ 87(2)(b) alleged that PO Zappia called him a, “piece of shit,” and a, “faggot,” (encl. 9A-9B). PO Zappia denied saying this (encl. 14A-14B) and PO Foss stated that he did not hear PO Zappia do so (encl. 11A-11C).

§ 87(2)(g)

Therefore, it is recommended that **Allegations C and D** be closed as *unsubstantiated*.

Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date